

		should be reduced by \$531.84 for the amount that exceeds the filing fee of \$775. Item 3: Preparation of Reporter's Transcript: Plaintiffs claim \$1406.15 for the preparation of a reporter's transcript. Defendant contends this cost is improper because there was no court reporter at the hearing on the motion for summary judgment (the subject of the appeal) and Plaintiffs did not designate a reporter's transcript on appeal. Defendant therefore contends the entire amount Plaintiffs claim for this item should be stricken. Item 5: Production of Additional Evidence: Plaintiffs claim \$151.35 for production of additional evidence. Defendant contends there was no production of additional evidence on appeal; therefore, the entire amount Plaintiffs claim for this item should be stricken. The court finds Defendant has met its burden. Defendant has presented sufficient evidence to prove the claimed costs for items 1, 3 and 5 were not necessary or reasonable. Plaintiffs concede there was no report's transcript designated in this action and for purposes of the appeal. Plaintiffs explain they inadvertently included a reporter's transcript cost item due to a bookkeeping error. Plaintiffs do not specifically address Defendant's objections to items 1 and 5. Plaintiffs expressly state they do not oppose the motion. Therefore, the motion is granted.
8	Davis vs. Pfaffly 2022-01294841 Motion for Protective Orders Motion to Compel Further responses to Form Rogs Further responses to special rogs Compel Production Compel requests for admission	Motions 1-4: Plaintiff's Motions for Protective Order, filed on 4/30/36 under ROAs 215, 216, 217, and 218, are MOOT in light of Plaintiff's notice of withdrawal of the motions filed on 9/21/26. Motion No. 5: Defendant's Motion to Compel Plaintiff's Further Responses to Requests for Production, Set Two (RFPs), filed under ROA 293, is GRANTED. Defendant moves for an order compelling responses and documents regarding RFPs 32-52 and seeks sanctions of \$1,635.00. The RFPs generally seek documents supporting Plaintiff's contentions about the subject fire which Plaintiff alleges caused her damages.

	In response to the RFPs, Plaintiff asserts objections and states she is “unable to produce documents on this request as drafted.” Plaintiff asserts the RFPs are duplicative/repetitive of previous requests, improperly seek responses regarding contentions, and are overbroad. The RFPs are not identical to prior RFPs and are reasonably calculated to lead to discovery of admissible evidence. (Code Civ. Proc. § 2017.010.) Plaintiff shall serve further responses and produce documents to the extent responsive documents are in her possession, custody, or control and shall specify which documents, if any, exist but are not in her possession. Plaintiff’s written responses must comply with Code of Civil Procedure sections 2031.210, 2031.220, and 2031.230. Defendant’s request for sanctions is denied because Defendants’ counsel did not exhaust the meet and confer process before filing the motion. Defendant’s counsel should have engaged in additional efforts to meet and confer, including a telephonic, video, or in-person conference with Plaintiff as required under Code of Civil Procedure section 2016.040. Plaintiff shall serve further responses and produce documents within 30 days. Motion No. 6: Defendant’s Motion to Compel Plaintiff’s Further Responses to Requests for Admission, Set Two (RFAs), filed under ROA 301, is GRANTED. Defendant seeks further responses to RFAs 8-35, which relate to the parties’ dispute about the subject fire and its cause. Plaintiff’s responses generally object and state she “lacks sufficient information to admit or deny the Request, based on the form of the Request.” Plaintiff argues the RFAs are duplicative and redundant or previous RFAs. Plaintiff has not shown she is unable to admit or deny the RFAs – rather she refuses to admit or deny because she believes they are cumulative. Defendant has shown RFAs are not identical to prior RFAs and are reasonably calculated to lead to discovery of admissible evidence. (Code Civ. Proc. § 2017.010.) The request for sanctions is denied for the reasons set out above.
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		Plaintiff shall serve further responses within 30 days compliant with Code of Civil Procedure section 2033.210 and 2033.220. Motion No. 7: Defendant's Motion to Compel Plaintiff's Further Responses to Form Interrogatories, Set Two (FROGs), filed under ROA 305, is GRANTED. This dispute concerns FROG 17.1, which seeks information regarding each of Plaintiff's responses to RFAs which are not an unqualified admission. In light of the order compelling further responses to RFAs, Plaintiff must also serve responses to FROG 17.1 to the extent any of her responses are not unqualified admissions. The request for sanctions is denied for the reasons set out above. Plaintiff shall serve further responses within 30 days. Motion No. 8: Defendant's Motion to Compel Plaintiff's Further Responses to Special Interrogatories, Set Two (SPROGs), filed under ROA 297, is GRANTED. Defendant seeks further responses to SPROGs 34-63, which relate to the subject fire. Plaintiff again asserts the requests are overbroad and redundant of prior requests. Plaintiff has not shown the SPROGs are redundant and Defendant has shown they are reasonably calculated to lead to discovery of admissible information regarding the subject fire. (Code Civ. Proc. § 2017.010.) The request for sanctions is denied for the reasons set out above. Plaintiff shall serve further responses within 30 days.
9	Azami vs. LAD Mission Viejo-JLR, Inc. 2024-01374785 Motion for Summary Judgment and/or Adjudication	Defendant LAD Mission Viejo-JLR, Inc.'s Motion for Summary Judgment or in the Alternative Summary Adjudication is GRANTED in part as to the 4th and 5th causes of action and DENIED as to summary judgment and the 1st-3rd causes of action. The Court exercises its discretion to consider Plaintiff's improperly formatted objections. (See <i>Herrera v. Deutsche Bank National Trust Co.</i> (2011) 196 Cal.App.4th 1366, 1378.)